

UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF MINNESOTA

JOSEPH KIRCHNER,

Plaintiff,

v.

KEITH ELLISON, in his official
capacity as Attorney General of the
State of Minnesota,

Defendant.

Case No. 0:26-cv-02594-LMP-DJF

**[PROPOSED] ORDER ON PLAINTIFF'S
MOTION TO ALTER OR AMEND THE
JUDGMENT**

ORDER

This matter is before the Court on Plaintiff's Motion to Alter or Amend the Judgment under Federal Rule of Civil Procedure 59(e). Based upon the motion, the memoranda of the parties, and all the files, records, and proceedings herein,

IT IS HEREBY ORDERED THAT:

1. Plaintiff's Motion to Alter or Amend the Judgment is **GRANTED** as set forth below.
2. The Judgment entered August 20, 2026 (ECF No. 28) is **VACATED**, and the Order Granting Motion To Dismiss (ECF No. 27) is **AMENDED** to deny Defendant's Motion to Dismiss (ECF No. 9) as to Counts I and II of the Complaint. Counts III and IV proceed as declaratory relief ancillary to Counts I and II.
3. Defendant shall answer the Complaint within twenty-one (21) days of the date of this Order.

IN THE ALTERNATIVE, IT IS HEREBY ORDERED THAT:

4. The Judgment entered August 20, 2026 (ECF No. 28) is **ALTERED** to provide that the Complaint (ECF No. 1) is **DISMISSED WITHOUT PREJUDICE**.

5. Plaintiff is **GRANTED** leave to file an amended complaint within twenty-one (21) days of the date of this Order, limited to the amendments identified in Part III.E of Plaintiff's memorandum of law.

BY THE COURT:

Dated: _____, 2026

The Honorable Laura M. Provinzino

United States District Judge